

SOLICITATION/CONTRACT/ORDER FOR COMMERCIAL PRODUCTS AND COMMERCIAL SERVICES

NOTE: OFFEROR TO COMPLETE BLOCKS 12, 17, 23, 24, AND 30.

2. CONTRACT NUMBER 3. AWARD/EFFECTIVE DATE 4. ORDER NUMBER			1. REQUISITION NUMBER		PAGE 1 OF 41		
			5. SOLICITATION NUMBER 75FCMC26Q0064		6. SOLICITATION ISSUE DATE 4/17/2026		
7. FOR SOLICITATION INFORMATION CALL:			a. NAME Tennille Coombs, Contract Specialist		b. TELEPHONE NUMBER (No collect calls) -		
			8. OFFER DUE DATE/ LOCAL TIME 4/30/2026 12:00 PM EST				
9. ISSUED BY DIVISION OF QUALITY CONTRACTS, CMS - OAGM 7500 SECURITY BOULEVARD, MS: B3-30-03 BALTIMORE, MD 21244-1850 Heather Parr-Stewart Lang, Contracting Officer Tennille Coombs, Contract Specialist			CODE HHSCMS		10. THIS ACQUISITION IS ☒ UNRESTRICTED OR ☐ SET ASIDE: _____ % FOR: ☐ SMALL BUSINESS ☐ WOMEN-OWNED SMALL BUSINESS (WOSB) ☐ NORTH AMERICAN ☐ HUBZONE SMALL BUSINESS ☐ ECONOMICALLY DISADVANTAGED ☐ INDUSTRY CLASSIFICATION ☐ SERVICE-DISABLED ☐ DISADVANTAGED ☐ STANDARD (NAICS): 541611 ☐ VETERAN-OWNED ☐ WOMEN-OWNED SMALL BUSINESS (EDWOSB) ☐ SIZE STANDARD: ☐ SMALL BUSINESS (SDVOSB) ☐ 8(A)		
11. DELIVERY FOR FREE ON BOARD (FOB) DESTINATION UNLESS BLOCK IS MARKED ☒ SEE SCHEDULE		12. DISCOUNT TERMS		13a. THIS CONTRACT IS A ☐ RATED ORDER UNDER THE DEFENSE PRIORITIES AND ALLOCATIONS SYSTEM - DPAS (15 CFR 700)		13b. RATING 14. METHOD OF SOLICITATION ☒ REQUEST FOR QUOTE (RFQ) ☐ INVITATION FOR BID (IFB) ☐ REQUEST FOR PROPOSAL (RFP)	
15. DELIVER TO SEE SCHEDULE			CODE		16. ADMINISTERED BY CODE		
17a. CONTRACTOR/ OFFEROR CODE FACILITY CODE			18a. PAYMENT WILL BE MADE BY CODE				
TELEPHONE NUMBER			17b. CHECK IF REMITTANCE IS DIFFERENT AND PUT SUCH ADDRESS IN OFFER ☐				
18b. SUBMIT INVOICES TO ADDRESS SHOWN IN BLOCK 18a UNLESS BLOCK BELOW IS CHECKED ☐ SEE ADDENDUM							
19. ITEM NUMBER	20. SCHEDULE OF SUPPLIES/SERVICES		21. QUANTITY	22. UNIT	23. UNIT PRICE	24. AMOUNT	
	See Schedule						
			(Use Reverse and/or Attach Additional Sheets as Necessary)				
25. ACCOUNTING AND APPROPRIATION DATA				26. TOTAL AWARD AMOUNT (For Government Use Only)			
☒ 27a. SOLICITATION INCORPORATES BY REFERENCE (FEDERAL ACQUISITION REGULATION) FAR 52.212-1, 52.212-4. FAR 52.212-3 AND 52.212-5 ARE ATTACHED. ADDENDA				☒ ARE ☐ ARE NOT ATTACHED			
☐ 27b. CONTRACT/PURCHASE ORDER INCORPORATES BY REFERENCE FAR 52.212-4. FAR 52.212-5 IS ATTACHED. ADDENDA				☐ ARE ☐ ARE NOT ATTACHED			
☒ 28. CONTRACTOR IS REQUIRED TO SIGN THIS DOCUMENT AND RETURN COPIES TO ISSUING OFFICE. CONTRACTOR AGREES TO FURNISH AND DELIVER ALL ITEMS SET FORTH OR OTHERWISE IDENTIFIED ABOVE AND ON ANY ADDITIONAL SHEETS SUBJECT TO THE TERMS AND CONDITIONS SPECIFIED				☐ 29. AWARD OF CONTRACT: REFERENCE _____ OFFER DATED _____. YOUR OFFER ON SOLICITATION (BLOCK 5), INCLUDING ANY ADDITIONS OR CHANGES WHICH ARE SET FORTH HEREIN, IS ACCEPTED AS TO ITEMS:			
30a. SIGNATURE OF OFFEROR/CONTRACTOR			31a. UNITED STATES OF AMERICA (SIGNATURE OF CONTRACTING OFFICER)				
30b. NAME AND TITLE OF SIGNER (Type or print)		30c. DATE SIGNED	31b. NAME OF CONTRACTING OFFICER (Type or print)		31c. DATE SIGNED		

Solicitation/Contract Form

Meeting Support- Transcripts, Recommendations, and Reports

(End Of Section)

Supplies or Services and Prices/Cost

Item	Supplies/Service	Dates	Quantity	Unit
0001	Base Period Severability: Yes	Period of Performance From 01 JUN 2026 To 31 MAY 2027		
0001AA	CDLT and HOP Meetings (Audio Minutes) Severability: Yes Firm Fixed Price	Period of Performance From 01 JUN 2026 To 31 MAY 2027	900.0	Minutes
0001AB	Additional Meeting Minutes (Audio Minutes Optional) Severability: Yes Firm Fixed Price	Period of Performance From 01 JUN 2026 To 31 MAY 2027	150.0	Minutes
0001AC	Additional Meeting Minutes (Audio Minutes Optional) Severability: Yes Firm Fixed Price	Period of Performance From 01 JUN 2026 To 31 MAY 2027	150.0	Minutes
0001AD	Panel Related Support Documents (Hours) Severability: Yes Firm Fixed Price	Period of Performance From 01 JUN 2026 To 31 MAY 2027	16.0	Minutes

0002	Option Period 1 Severability: Yes	Period of Performance From 01 JUN 2027 To 31 MAY 2028		
0002AA (Option Period 1)	CDLT and HOP Meetings (Audio Minutes) Severability: Yes Firm Fixed Price	Period of Performance From 01 JUN 2027 To 31 MAY 2028	600.0	Minutes
0002AB (Option Period 1)	Additional Meeting Minutes (Audio Minutes Optional) Severability: Yes Firm Fixed Price	Period of Performance From 01 JUN 2027 To 31 MAY 2028	150.0	Minutes
0002AC (Option Period 1)	Additional Meeting Minutes (Audio Minutes Optional) Severability: Yes Firm Fixed Price	Period of Performance From 01 JUN 2027 To 31 MAY 2028	150.0	Minutes
0002AD (Option)	Panel Related Support Documents (Hours) Severability: Yes Firm Fixed Price	Period of Performance From 01 JUN 2027 To 31 MAY 2028	16.0	Minutes
0003 (Option Period 2)	Option Period 2 Severability: Yes	Period of Performance From 01 JUN 2028 To 31 MAY 2029		
0003AA (Option Period 2)	CDLT and HOP Meetings (Audio Minutes) Severability: Yes Firm Fixed Price	Period of Performance From 01 JUN 2028 To 31 MAY 2029	600.0	Minutes

0003AB (Option Period 2)	Additional Meeting Minutes (Audio Minutes Optional) Severability: Yes Firm Fixed Price	Period of Performance From 01 JUN 2028 To 31 MAY 2029	150.0	Minutes
0003AC (Option Period 2)	Additional Meeting Minutes (Audio Minutes Optional) Severability: Yes Firm Fixed Price	Period of Performance From 01 JUN 2028 To 31 MAY 2029	150.0	Minutes
0003AD (Option Period 2)	Panel Related Support Documents (Hours) Severability: Yes Firm Fixed Price	Period of Performance From 01 JUN 2028 To 31 MAY 2029	16.0	Minutes
0004 (Option Period 3)	Option Period 3 Severability: Yes	Period of Performance From 01 JUN 2029 To 31 MAY 2030		
0004AA (Option Period 3)	CDLT and HOP Meetings (Audio Minutes) Severability: Yes Firm Fixed Price	Period of Performance From 01 JUN 2029 To 31 MAY 2030	900.0	Minutes
0004AB (Option Period 3)	Additional Meeting Minutes (Audio Minutes Optional) Severability: Yes Firm Fixed Price	Period of Performance From 01 JUN 2029 To 31 MAY 2030	150.0	Minutes
0004AC (Option Period 3)	Additional Meeting Minutes (Audio Minutes Optional) Severability: Yes Firm Fixed Price	Period of Performance From 01 JUN 2029 To 31 MAY 2030	150.0	Minutes

0004AD (Option Period 3)	Panel Related Support Documents (Hours) Severability: Yes Firm Fixed Price	Period of Performance From 01 JUN 2029 To 31 MAY 2030	16.0	Minutes
0005 (Option Period 4)	Option Period 4 Severability: Yes	Period of Performance From 01 JUN 2029 To 31 MAY 2030		
0005AA (Option Period 4)	CDLT and HOP Meetings (Audio Minutes) Severability: Yes Firm Fixed Price	Period of Performance From 01 JUN 2030 To 31 MAY 2031	600.0	Minutes
0005AB (Option Period 4)	Additional Meeting Minutes (Audio Minutes Optional) Severability: Yes Firm Fixed Price	Period of Performance From 01 JUN 2030 To 31 MAY 2031	150.0	Minutes
0005AC (Option Period 4)	Additional Meeting Minutes (Audio Minutes Optional) Severability: Yes Firm Fixed Price	Period of Performance From 01 JUN 2030 To 31 MAY 2031	150.0	Minutes
0005AD (Option Period 4)	Panel Related Support Documents (Hours) Severability: Yes Firm Fixed Price	Period of Performance From 01 JUN 2030 To 31 MAY 2031	16.0	Minutes

Additional Information/Notes

Payment will be based on the negotiated amounts set forth in the Price Summary. Under no circumstances will the payment amount in the "Total Price" column of Supplies or Services and Prices/Cost Summary be exceeded for any CLIN and/or SLIN under this task order.

A. **SLIN 000XAA** - The contractor shall bill for the number of Audio Minutes that have been completed during the billing period specified on the subject invoice, at the amount identified in the "Unit Price" column. This SLIN will capture all work for each meeting including all deliverables.

As part of their invoice, the contractor shall provide the quantity of audio minutes completed, the unit price per audio minutes, and the total amount billed for the subject SLIN. The contractor must also indicate which meeting each invoice is for. The contractor cannot bill for this SLIN until the Final Verbatim Transcript is accepted by the COR for each meeting. The invoice shall note the date deliverables were accepted by CMS.

B. **SLIN 000XAB (Optional) and SLIN 000XAC (Optional)** - If exercised, the contractor shall bill for the number of Audio Minutes that have been completed during the billing period specified on the subject invoice, at the amount identified in the "Unit Price" column.

As part of their invoice, the contractor shall provide the quantity of audio minutes completed, the unit price per audio minutes, and the total amount billed for the subject SLIN. The contractor must also indicate which meeting each invoice is for. The contractor cannot bill for this SLIN until the Final Verbatim Transcript is accepted by the COR for each meeting.

C. **SLIN 000XAD** The term "Level of Effort Units" within SLIN 000[#]AD represents increments of level of effort provided by the Contractor, in the performance of Panel Related Support Documents (Task 4). The use of "Level of Effort Units" within SLIN 000[#]AD accounts for the variance in the scale and content of the requested tasks, and ensures that payment for these deliverables is fair and reasonable.

In accordance with Task 4 Panel Related Support Documents, this purchase order outlines the process for initiating Ad Hoc Requests, including the requirement for the Contractor to provide a level of effort estimate for approval by the Contracting Officer's Representative before performing any ad hoc tasks.

Upon each submission and acceptance of Task 4 Panel Related Support Documents the Contractor shall bill for the quantity of "Level of Effort Units" associated with the subject ad hoc task, at the amount identified in the "Unit Price" column for SLIN 000 [#]AD.

(End of Section)

Description/Specifications/Statement of Work

Requirements

The purpose of this procurement is to obtain the services of a contractor to provide verbatim transcripts, lists of recommendations, and meeting reports for two congressionally mandated advisory panels: the Medicare Advisory Panel on Clinical Diagnostic Laboratory Tests (CDLT) and the Medicare Advisory Panel on Hospital Outpatient Payment (HOP).

(End of Section)

Packaging and Marking

(End of Section)

Inspection and Acceptance

(End of Section)

Deliveries or Performance

Line Item 0001

Performance

Period of Performance
Period of Performance From 01 JUN 2026 To 31 MAY 2027

Line Item 0001AA

Performance

Period of Performance
Period of Performance From 01 JUN 2026 To 31 MAY 2027

Line Item 0001AB

Performance

Period of Performance
Period of Performance From 01 JUN 2026 To 31 MAY 2027

Line Item 0001AC

Performance

Period of Performance

Period of Performance
From
01 JUN 2026
To
31 MAY 2027

Line Item 0001AD**Performance****Period of Performance**

Period of Performance
From
01 JUN 2026
To
31 MAY 2027

Line Item 0002**Performance****Period of Performance**

Period of Performance
From
01 JUN 2027
To
31 MAY 2028

Line Item 0002AA (Option Period 1)**Performance****Period of Performance**

Period of Performance
From
01 JUN 2027
To
31 MAY 2028

Line Item 0002AB (Option Period 1)**Performance**

Period of Performance
Period of Performance From 01 JUN 2027 To 31 MAY 2028

Line Item 0002AC (Option Period 1)**Performance**

Period of Performance
Period of Performance From 01 JUN 2027 To 31 MAY 2028

Line Item 0002AD (Option)**Performance**

Period of Performance
Period of Performance From 01 JUN 2027 To 31 MAY 2028

Line Item 0003 (Option Period 2)**Performance**

Period of Performance

Period of Performance From 01 JUN 2028 To 31 MAY 2029

Line Item 0003AA (Option Period 2)

Performance

Period of Performance

Period of Performance From 01 JUN 2028 To 31 MAY 2029

Line Item 0003AB (Option Period 2)

Performance

Period of Performance

Period of Performance From 01 JUN 2028 To 31 MAY 2029

Line Item 0003AC (Option Period 2)

Performance

Period of Performance

Period of Performance From 01 JUN 2028 To 31 MAY 2029

Line Item 0003AD (Option Period 2)

Performance

Period of Performance
Period of Performance From 01 JUN 2028 To 31 MAY 2029

Line Item 0004 (Option Period 3)**Performance**

Period of Performance
Period of Performance From 01 JUN 2029 To 31 MAY 2030

Line Item 0004AA (Option Period 3)**Performance**

Period of Performance
Period of Performance From 01 JUN 2029 To 31 MAY 2030

Line Item 0004AB (Option Period 3)**Performance**

Period of Performance

Period of Performance From 01 JUN 2029 To 31 MAY 2030

Line Item 0004AC (Option Period 3)

Performance

Period of Performance

Period of Performance From 01 JUN 2029 To 31 MAY 2030

Line Item 0004AD (Option Period 3)

Performance

Period of Performance

Period of Performance From 01 JUN 2029 To 31 MAY 2030

Line Item 0005 (Option Period 4)

Performance

Period of Performance

Period of Performance From 01 JUN 2029 To 31 MAY 2030

Line Item 0005AA (Option Period 4)

Performance

Period of Performance
Period of Performance From 01 JUN 2030 To 31 MAY 2031

Line Item 0005AB (Option Period 4)**Performance**

Period of Performance
Period of Performance From 01 JUN 2030 To 31 MAY 2031

Line Item 0005AC (Option Period 4)**Performance**

Period of Performance
Period of Performance From 01 JUN 2030 To 31 MAY 2031

Line Item 0005AD (Option Period 4)**Performance**

Period of Performance

Period of Performance
 From
 01 JUN 2030
 To
 31 MAY 2031

(End of Section)

Contract Administration Data

Department of Health and Human Services Acquisition Regulations (HHSAR) Clauses Incorporated by Reference

Number	Title	Effective Date
352.232-71	Electronic Submission of Payment Requests	Feb 2022

Additional Regulation or Supplement Clauses Incorporated by Full Text

G.1 GOVERNMENT REPRESENTATIVES AND RESPONSIBILITIES (Nov 2024)

Following are the Government Representatives and their respective roles and responsibilities on this contract:

a. Contracting Officer

As defined in Federal Acquisition Regulation (FAR) 2.101, Definitions, and in accordance with FAR 1.602-1, Authority, "Contracting officers have authority to enter into, administer, and/or terminate contracts and make related determinations and findings." There is no other authorized representative or any other Administrative Contracting Officer assigned to this contract to carry out a Contracting Officer's duties, except for technical direction assigned to the Contracting Officer's Representative, if applicable.

The Contracting Officer is:

Centers for Medicare & Medicaid Services

Office of Acquisition & Grants Management

Acquisition Support Group

Division of Quality Contracts

ATTN: Heather Parr-Stewart Lang

7500 Security Blvd.

Baltimore, MD 21244-1850

Phone: 410-786-3286

Email Address: Heather.Parr-StewartLang@cms.hhs.gov

b. Contract Specialist

Notwithstanding any of the other provisions of this Contract, the Contract Specialist will assist the Contracting Officer with his/her responsibilities as defined in the FAR.

The Contract Specialist is:

Centers for Medicare & Medicaid Services

Office of Acquisition & Grants Management

Division of Quality Contracts

Acquisition Support Group

ATTN: Tennille Coombs

7500 Security Blvd.

Baltimore, MD 21244-1850

Phone: 410-786-3472

Email Address: Tennille.Coombs@cms.hhs.gov

c. Contracting Officer's Representative

The Contracting Officer's Representative (COR), as defined in FAR 2.101, Definitions, is:

Centers for Medicare & Medicaid Services

Center for Medicare

Hospital & Ambulatory Policy Group

Division of Outpatient Care

ATTN: Au'Sha Washington

7500 Security Blvd.

Baltimore, MD 21244-1850

Phone: 410-786-3736

Email Address: Ausha.Washington@cms.hhs.gov

In accordance with FAR 1.602-2(d), Responsibilities, the COR's delegated responsibilities are identified in the Contracting Officer's appointment memorandum, a copy of which will be furnished to the contractor.

The COR will serve as the primary liaison between the Contractor and the Contracting Officer and perform duties within the limitations of the COR's responsibilities in accordance with FAR 1.602-2(d).

Technical direction must be within the general scope of the work stated in the contract. The term "technical direction" is defined to include, without limitation, the following:

(1) Directions to the Contractor which direct the contract effort, shift work emphasis between work areas or tasks, require pursuit of certain lines of inquiry, fill in details or otherwise serve to accomplish the contractual technical requirements as identified in the Statement of Work or Performance Work Statement; or

(2) Provision of information to the Contractor, which assists in the interpretation of drawings, specifications, or technical portions of the work description.

Technical direction within the scope of the contract, shall be “in writing” whenever possible and routed through the CO prior to release to the Contractor. If technical direction is verbally communicated, the COR must immediately confirm its direction in writing. Where doubt exists as to whether proposed technical direction is within or outside the scope of the contract, the CO shall be contacted.

If, in the opinion of the Contractor, any instruction or direction issued by a Government representative constitutes a change to the contract or constitutes a “Change Order” as defined in FAR 2.101, Definitions, the Contractor shall follow the instructions identified in FAR 52.243-7 Notification of Changes.

The COR “has no authority to make any commitments or changes that affect price, quality, quantity, delivery, or other terms and conditions of the contract nor in any way direct the contractor or its subcontractors to operate in conflict with the contract terms and conditions.” See FAR 1.602-2(d)(5). The COR’s authority is not re-delegable and the COR may be personally liable for unauthorized acts in accordance with FAR 1.602-(d)(7)(iv) and (v). For example, the COR does not have the authority to:

1. Make changes to contract terms and conditions;
2. Direct the contractor to perform work or make deliveries not specifically required under the contract;
3. Waive or relax the Government’s rights with regard to the Contractor’s compliance with the specifications, price, delivery or any other terms or conditions of the contract;
4. Make any commitments or approve any actions that would create any financial obligation on the part of the Government; or
5. Issue direction that constitutes a “change” as defined in:

FAR 52.243-1, Changes – Fixed Price;

FAR 52.243-2, Changes – Cost-Reimbursement;

FAR 52.243-3, Changes –Time-and-Materials or Labor-Hours;

FAR 52.243-4, Changes; or,

FAR 52.243-5, Changes and Changed Conditions.

In addition to the above responsibilities, the COR and/or Contractor shall immediately notify the Contracting Officer of any contractual concerns related to the following:

1. Personal Services: FAR 37.104(a) provides that, “[a] personal services contract is characterized by the employer-employee relationship it creates between the Government and the contractor’s personnel. The Government is normally required to obtain its employees by direct hire under competitive appointment or other procedures required by the civil service laws. Obtaining personal services by contract, rather than by direct hire, circumvents those laws unless Congress has specifically authorized acquisition of the services by contract.”

Under this contract, the services to be performed do not require the Contractor or the Contractor’s personnel to exercise personal judgement and discretion on behalf of the Government. Rather, the Contractor’s personnel will act and exercise personal judgement and discretion on behalf of the Contractor. The services to be performed under this contract are not for personal services as defined by FAR 37.104.

Both the Government and the Contractor have a responsibility to monitor contract activities. The CO must be notified immediately if at any time during contract performance the interaction between the Government representative and Contractor personnel constitutes or is perceived to constitute personal services. Both the Government and Contractor personnel must exercise caution to ensure that service contracts not personal in nature avoid even the appearance of a personal services contract.

2. Inherently Governmental Functions: The agency shall not use contractors for the performance of inherently governmental functions unless issued under statutory authority See FAR 7.5 Inherently Governmental Functions. As defined in FAR 2.101, “Inherently Governmental Function” means, as a matter of policy, a function that is so intimately related to the public interest as to mandate performance by Government employees. An inherently governmental function includes activities that require either the exercise of discretion in applying Government authority, or the making of value judgments in making decisions for the Government. Inherently governmental functions DO NOT normally include gathering information for or providing advice, opinions, recommendations, or ideas to Government officials.

FAR 7.503(c) provides a list of examples of functions considered to be inherently governmental functions or which shall be treated as such.

To this effect, during contract performance, care should be taken to ensure that any change or expansion in scope of the requirement does not include inherently governmental functions. Further, due to the nature of a given requirement, there is a potential for close working relationships to develop between Government and Contractor personnel; however, care should be taken to ensure that any familiarity established between the Government and Contractor personnel never promotes or fosters an environment that allows for the assignment of inherently governmental functions to contractor employee(s).

3. Unauthorized Commitments: In carrying out your duties, you are reminded that in accordance with FAR1.602-2 (d)(5), the COR “[h]as no authority to make any commitments or changes that affect price, quality, quantity, delivery, or other terms and conditions of the contract, or in any way direct the Contractor, or its Subcontractors, to operate in conflict with the contract terms and conditions.” Doing so constitutes an “unauthorized commitment.” The Contracting Officer is the only individual with the authority to enter into an agreement on behalf of the Government. An unauthorized commitment is defined as “an agreement that is not binding solely because the Government representative who made it lacked the authority to enter into that agreement on behalf of the Government.” FAR 1-602-3(a). Examples of unauthorized commitments include, but are not limited to, the following:

Orders placed with a Contractor without a valid contractual instrument in place.

Directing any Contractor to do additional work, in excess of the contract value, or work beyond the Period of Performance.

Authorize new work to a contract without notifying the Contracting Officer (CO) or Contract Specialist (CS) and having a modification in place for the new work.

Directing the Contractor, in any way that could change the terms and conditions of the contractual instrument or be deemed outside the Scope of the Statement of Work.

Unauthorized commitments are a serious matter and may result in personal liability on the part of the employee who committed the unauthorized commitment. Ratification, is “the act of approving an unauthorized commitment by an official who has the authority to do so.” FAR 1.602-3(a).

G.2 PAYMENTS - INVOICES - (September 2024)

a. **GENERAL**: Effective August 31, 2020, the Contractor/ Vendor shall create an invoice within the Invoice Processing Platform (IPP), a secure Web-based service for federal agencies and their vendors to manage government invoicing from purchase order (PO) through payment notification. Note: All invoice terms and conditions are contract specific and may vary from contract to contract.

b. **CONTENT OF INVOICE**: FAR 32.905 Payment Documentation and Process, provides the required content for a proper invoice. In addition to the requirements of FAR 32.905, the following items shall also be included on the invoice to be considered proper:

- Line item number (i.e. CLIN/SLIN as applicable)
- Contractor /Vendor's Unique Entity Identifier (UEI) Number;
- Period of Performance (PoP) or delivery date of goods or services provided;

- Attachments and applicable support documentation requested by the CO ;
- The first page of the PDF invoice or PDF SF-1034 shall include :
 1. Contractor /Vendor name and address;
 2. Bill to: CMS, P.O. Box 7520, Baltimore, MD 21207;
 3. Full CMS contract number and task order number;
 4. Summary of charges by CLIN/SLIN (if applicable) with a grand total. CLIN/SLIN(S) on the PDF shall be identical to what is entered in IPP;
 5. Invoice number shall be identical to what is entered in IPP. Each Contractor/Vendor invoice number must be unique across all CMS contracts awarded to the Contractor /Vendor. For example, If Contractor /Vendor A has 5 CMS contracts, Contractor /Vendor A cannot use the same invoice number on any of the 5 contracts they have with CMS. If using a dash in IPP then the dash must be used on the PDF. IPP does not allow any special characters (i.e.*, # , _);
 6. Within IPP, the " Bill Period Start " and "Bill Period End " dates should align with the " Service From " and " Service To " dates (this is not the entire POP dates);
 7. Date of Delivery or Service dates shown on the PDF should: (i) F all within the contract POP (unless contract indicates otherwise) (ii) Align with the " Bill Period Start " and "Bill Period End " dates and " Service From " and " Service To " dates, and (iii) Note when the work was performed;
 8. Date invoice was prepared;
 9. The total invoice amount on the first page of the invoice or SF-1034 must be a debit. A credit may be shown on the first page of the invoice or SF-1034 if the credit falls within the Period Of Performance and is for the same CLIN as the debit. CMS does not accept credit vouchers or process refunds in IPP or the Invoice Submission Box. Credits in excess of \$5.01 must be submitted via Pay.gov (For questions surrounding Pay.gov, contact pay.gov.clev@clev.frb.org or 1-800-624-1373 (Option 2)). Credits sent to Pay.gov shall be copied to the CO, CS and COR. Credits valued at or less than \$5.01 must be submitted via Credit Gateway; however, it is preferred that the Contractor/Vendor wait until a dollar amount is accumulated in order to submit the refund through Pay.gov (For questions surrounding Credit Gateway, contact customer.care@usbank.com or 1-877-815-1206);
- When an invoice has been resubmitted, an "R" should be added after the invoice number on the PDF and in IPP; this will ensure that the original invoice number is not duplicated in IPP. If a resubmitted invoice is rejected again, each subsequent resubmission requires an additional "R" added after the invoice number (i.e. "RR");
- The " final " designation should only be used when the contract is being closed out by OAGM. Do not use for the end of POP or Option Year;
- Contractor/ Vendor must maintain active registration in SAM .gov. If your SAM account is about to expire, wait until it is updated before submitting your invoice; and,
- Banking or address changes must be submitted via email to CCRchanges@cms.hhs.gov.

c. **INVOICE SUBMISSION:** The Contractor/ Vendor shall create an invoice from the Purchase Order (PO)/Contract via the IPP website <http://www.ipp.gov/>. For questions, call IPP Customer Support at (866) 973-3131 or email the IPP Customer Support at IPPCustomerSupport@fiscal.treasury.gov. Only one PDF invoice per submission is allowed in IPP.

d. **PAYMENTS:** The Government shall make payment of all proper invoices in accordance with the following clauses, as applicable and included in the respective TO/PO/contract:

- FAR 52.232-33 Payments by Electronic Funds Transfer - System for Award Management,
- FAR 52.232-1 Payments
- FAR 52.212-4 Contract Terms and Conditions - Commercial Items (If applicable)
- FAR 52.216-7 Allowable Cost and Payment
- FAR 52.232-7 Payments under Time-and-Materials and Labor-Hour Contracts

Payment shall be made upon acceptance by the Contracting Officer's Representative (COR) in accordance with the applicable FAR Inspection and Acceptance clause and the Contracting Officer's approval, as appropriate.

Reimbursement for invoices submitted under this contract shall be made no later than 30 calendar days after receipt of a proper invoice from the Contractor requested at the paying office designated above. Contracts with a 15- day payment term are not subject to interest payments until after day 30.

e. **INTEREST ON OVERDUE PAYMENT:** The Prompt Payment Act, Public Law 97-177 (96 Stat.85.31 U.S.C. 1801) is applicable to payments under this contract and requires the payment of interest on payments made more than 30 calendar days after receipt of a proper invoice in IPP. Determinations of interest due will be made in accordance with the provisions of the Prompt Payment Act and 5 CFR 1315.

G.3 Contractor Work Performed Outside the United States and its Territories (January 2021)

To comply with requirements of Homeland Security Presidential Directive -12 (HSPD-12) and Personal Identity Verification (PIV) of Federal Employees and Contractors, CMS must achieve appropriate security assurance for multiple CMS information systems by efficiently verifying the claimed identity of individuals working on the contract. The Contractor and its subcontractor (s) shall not perform any activities under this contract, including the transmission of data or other information, outside of the United States (U.S.) and its Territories without the prior written approval of the Contracting Officer. If work must be performed outside the U.S., the Contractor shall submit a request to the Contracting Officer, in writing, at least 45 calendar days prior to the work beginning.

The Contracting Officer will consider the following factors in making a decision whether to authorize the performance of work outside the U.S. and its Territories:

1. The necessity of the work to be performed outside the United States and its territories;
2. The Statement of Work under contract that will be performed outside the U.S. and its Territories;
3. Total projected dollar value of the work to be performed outside the U.S.;
4. Total projected number of labor hours and length of time to be performed for each individual employee working outside the U.S.;
5. The desired country/location where the work will be performed;
6. FAR Part 25, Foreign Acquisitions, and all other laws and regulations applicable to the performance of work outside the U.S.;
7. The contractor and/or its subcontractor(s) plans to adequately protect and secure CMS data, as well as abide by all applicable laws and regulations when work is performed outside of the U.S. and its Territories. Plans shall include -
 - a. Adequate contract terms regarding system security;
 - b. Adequate contract terms regarding the confidentiality and privacy requirements for information and data protection;
 - c. Adequate contract terms that are otherwise relevant, including the requirements of the Statement of Work;

- d. The Contractor's corporate compliance plan and internal policies and procedures designed to prevent and detect violations of applicable law, regulations, rules and ethical standards by employees, agents and others; and,
- 8. The necessity of Government Furnished Equipment (GFE) or Contractor Owned/Contractor Operated (COCO) devices to be used outside the U.S. and verification of a secure VPN access.
- 9. Compliance with Executive Order 13940 Aligning Federal Contracting and Hiring Practices With the Interests of American Workers. Determine if approval will reduce opportunities for the United States contractor workers performing in the United States and if this would cause any potential effects to national security.
- 10. Conformance with Section 889 "Prohibition on Certain Telecommunications and Video Surveillance Services or Equipment", of Public Law 115-232.
- 11. Determination that approval is in best interest of the Government.

The Contractor's request for authorization to perform work outside the U.S. shall include supplemental information to demonstrate that the performance of the work outside the U.S. satisfies all of the above factors. Contracting Officer approval to perform work outside the U.S. may require additional Statement of Work requirements, additional contract terms and conditions and/or Federal Acquisition Regulation (FAR) clauses to be incorporated into the contract.

(End of Section)

Special Contract Requirements

Department of Health and Human Services Acquisition Regulations (HHSAR) Clauses Incorporated by Full Text

352.239-74 Electronic and Information Technology Accessibility. (FEB 2024) DEVIATION

INFORMATION SYSTEM HOSTING, OPERATION, MAINTENANCE, OR USE (FEB 2024) (DEVIATION)

(a) Definitions. As used in this clause—

Assessment and Authorization (A&A) means the process used to ensure information systems including Major Applications and General Support Systems have effective security safeguards which have been implemented, planned for, and documented in an Information Technology Security Plan. The A&A process per applicable HHS policies and procedures is the mechanism by which HHS provides an Authorization to Operate (ATO), the official management decision given by the HHS to authorize operation of an information system.

Information system security plan means a formal document that provides an overview of the security requirements for an information system or an information security program and describes the security controls in place or planned for meeting those requirements.

(b) Hosting, operation, maintenance, or use at non-HHS facilities. For information systems that are hosted, operated, maintained, or used on behalf of HHS at non-HHS facilities, Contractors/subcontractors are fully responsible and accountable for ensuring compliance with all applicable Health Insurance Portability and Accountability (HIPAA) Act of 1996 (HIPAA) regulations, the Privacy Act and other required HHS confidentiality statutes included in HHS mandatory yearly training and privacy policy, Federal Information Security Modernization Act (FISMA), National Institutes of Standards and Technology (NIST), Federal Information Processing Standards (FIPS), and HHS security and privacy policy. This includes conducting compliant risk assessments, routine vulnerability scanning, system patching and change management procedures, and the completion of an acceptable contingency plan for each system. The Contractor's security and privacy control procedures must be equivalent to or exceed, those procedures used to secure HHS systems. A Privacy Impact Assessment (PIA) (if the system includes Personally Identifiable Information (PII)) or a Privacy Threshold Analysis (to determine if the system includes PII) must also be provided to the Contracting Officer Representative (COR) and approved by HHS Senior Agency Official for Privacy (SAOP) or designee prior to ATO. All external Internet connections to HHS network involving HHS information must be in accordance with the

Trusted Internet Connections (TIC) Reference Architecture and reviewed and approved by HHS prior to implementation. For Cloud Services hosting, the Contractor shall also ensure compliance with the Federal Risk and Authorization Management Program (FedRAMP).

(c) Collecting, processing, transmitting, and storing of PII. Adequate security and privacy controls for collecting, processing, transmitting, and storing of PII, as determined by the HHS SAOP or designee, must be in place, tested, and approved by HHS prior to hosting, operation, maintenance, or use of the information system, or systems by or on behalf of HHS. These security and privacy controls are to be assessed and stated within the PIA, Information System Security Plan, Information System Privacy Plan, Security Control Assessment Report, and/or Privacy Control Assessment Report, as agreed upon by the Contractor, COR, and the Operating Division Senior Official for Privacy. If these controls are determined not to be in place, or inadequate, a Plan of Action and Milestones (POA&M) must be submitted and approved prior to the collection of PII.

(d) Annual FISMA security controls assessment. The Contractor/subcontractor's system must adhere to all FISMA, FIPS, and NIST standards related to the annual FISMA security controls assessment and review and update the PIA. Any deficiencies noted during this assessment must be provided to the Contracting Officer for entry into HHS Plan of Action & Milestones (POA&M) management process. The Contractor/subcontractor must use HHS POA&M process to document planned remedial actions to address any deficiencies in information security policies, procedures, and practices, and the completion of those activities. Security deficiencies must be corrected within the timeframes specified by the HHS in the performance work statement or statement of work, or in the approved remediation plan through the HHS POA&M process. Contractor/subcontractor procedures are subject to periodic, unannounced assessments by HHS officials, including the HHS Office of Inspector General. The physical security aspects associated with Contractor/subcontractor activities must also be subject to such assessments. The results of an annual review or a major change in the cybersecurity posture at any time may indicate the need for reassessment and reauthorization of the system. If major changes to the system occur that may affect the privacy or security of the data or the system, the A&A of the system may need to be reviewed, retested and re-authorized per HHS Rules of Behavior for the Use of HHS Information and IT Resources Policy. Major changes introducing new privacy risks require an updated and reapproved PIA.

(e) Annual self-assessment. The Contractor/subcontractor must conduct an annual self-assessment on all systems and outsourced services as required. Both hard copy and electronic copies of the assessment must be provided to the COR. HHS reserves the right to conduct such an assessment using government personnel or another Contractor/subcontractor. The Contractor/subcontractor must take appropriate and timely action, as may be specifically addressed in the contract, to correct or mitigate any weaknesses discovered during such testing, at no additional cost to the Government to correct Contractor/subcontractor systems and outsourced services.

(f) Prohibition of installation and use of personally-owned or Contractor-owned equipment or software on HHS networks. HHS prohibits the installation and use of personally-owned or Contractor/subcontractor-owned equipment or software on HHS networks. If non-HHS owned equipment must be used to fulfill the requirements of a contract, it must be stated in the service agreement, performance work statement, statement of work, or contract. All of the security controls required for government furnished equipment must also be utilized in approved other equipment (OE) at the Contractor's expense. All remote systems must be equipped with, and use, an HHS-approved antivirus software and a personal (host-based or enclave based) firewall that is configured with an HHS-approved configuration. Software must be kept current, including all critical updates and patches. Owners of approved OE are responsible for providing and maintaining the anti-viral software and the firewall on the non-HHS owned OE.

(g) Disposal or return of electronic storage media on non-HHS leased or non-HHS owned IT equipment. All electronic storage media used on non-HHS leased or non-HHS owned IT equipment that is used to store, process, or access HHS information must be handled in adherence with disposition instructions upon—

(1) Completion or termination of the contract; or

(2) Disposal or return of the IT equipment by the Contractor/subcontractor or any person acting on behalf of the Contractor/subcontractor, whichever is earlier. Media (e.g., hard drives, optical disks, CDs, back-up tapes) used by the Contractors/subcontractors that contain HHS information must be returned to the HHS for sanitization or destruction or the Contractor/subcontractor must self-certify that the media has been disposed of per disposition instructions. This must be completed within 30 days of termination of the contract.

(h) Bio-Medical devices and other equipment or systems. Bio-Medical devices and other equipment or systems containing media (e.g., hard drives, optical disks) with HHS sensitive information will not be returned to the Contractor at the end of lease, for trade-in, or other purposes. For purposes of these devices and protection of HHS sensitive information the devices may be provided back to the Contractor under one of three scenarios—

- (1) The Contractor must accept the system without the drive;
- (2) A spare drive must be installed in place of the original drive at time of turn-in if HHS initial medical device purchase included a spare drive; or
- (3) The Contractor may request reimbursement for the drive at a reasonable open market replacement cost to be separately negotiated by the Contracting Officer and the Contractor at time of contract closeout.

(End of clause)

352.239-75 Security Controls Compliance Testing (Feb 2024) Deviation

On a periodic basis, HHS, including the Office of Inspector General, reserves the right to evaluate any or all of the security controls and privacy controls implemented by the Contractor under the clauses contained within the contract. With 10 working-days' notice, at the request of the government, the Contractor must fully cooperate and assist in a government-sponsored security controls assessment at each location wherein HHS information is processed or stored, or information systems are developed, operated, maintained, or used on behalf of HHS, including those initiated by the Office of Inspector General. The government may conduct a security control assessment on shorter notice, to include unannounced assessments, as determined by HHS in the event of an incident or a breach, or at any other time.

(End of clause)

Additional Regulation or Supplement Clauses Incorporated by Full Text

H.1 HIPAA BUSINESS ASSOCIATE CLAUSE (OCT 2014)

All Protected Health Information (PHI), as defined in 45 C.F.R. 160.103, that is relevant to this Contract, shall be administered in accordance with the Health Insurance Portability and Accountability Act of 1996 ("HIPAA," 42 U.S.C. 1320d), as amended, as well as the corresponding implementing regulations and this HIPAA Business Associate Clause.

a. Definitions:

All terms used herein and not otherwise defined, shall have the same meaning as in HIPAA, as amended, and the corresponding implementing regulations. Non-HIPAA related provisions governing the Contractor's duties and obligations, such as those under the Privacy Act and any applicable data use agreements, are generally covered elsewhere in the Contract. The following definitions apply to this Contract Clause:

"Business Associate" shall mean the Contractor (and/or the Contractor's subcontractors or agents) if/when it uses individually identifiable health information on behalf of CMS, i.e. PHI, to carry out CMS' HIPAA-covered functions.

"Covered Entity" shall mean the portions of CMS that are subject to the HIPAA Privacy Rule.

"Secretary" shall mean the Secretary of the Department of Health & Human Services or the Secretary's designee.

b. Obligations and Activities of Business Associate:

Except as otherwise provided in this Contract, Business Associate, as defined above, shall only use or disclose PHI on behalf of, or to provide services to, Covered Entity in accordance with this Contract and the HIPAA Privacy and Security Rules.

Business Associate shall document in writing the policies and procedures that will be used to meet HIPAA requirements. The policies and procedures shall include the following, at a minimum:

1. Business Associate shall not:

- i. Use or disclose PHI that is created, received, maintained or transmitted by Business Associate from, or on behalf of, Covered Entity other than as permitted or required by this Contract or as required by law;
- ii. Sell PHI; or,
- iii. Threaten, intimidate, coerce, harass, discriminate against, or take any other retaliatory action against any individual for:

A. Filing a complaint under 45 CFR 160.306;

B. Testifying, assisting or participating in an investigation, compliance review, proceeding or hearing under 45 CFR Part 160; or

C. Opposing any act or practice that is unlawful under HIPAA, provided there is a good faith belief that the practice is unlawful, the manner of opposition is reasonable, and the opposition does not involve the disclosure of PHI in violation of subpart E of Part 164.

2. Business Associate shall:

i. Have a security official who will be responsible for development and implementation of its security policies and procedures, including workforce security measures, to ensure proper security awareness and training (including security incident response and reporting), and security incident procedures, in accordance with this Contract, including this HIPAA Business Associate Clause and the Contract's clause entitled "CMS Information Security."

ii. Use administrative, physical and technical safeguards to prevent use or disclosure of PHI created, received, maintained or transmitted by Business Associate from, or on behalf of Covered Entity only as provided for by this Contract. In doing so, it shall implement policies and procedures to address the following and, where applicable, ensure that such policies and procedures are also in conformance with this Contract's clause entitled "CMS Information Security:"

A. Prevent, detect, contain and correct security violations through the use of:

- a. Risk analyses (including periodic technical and nontechnical evaluations);
- b. Appropriate risk management strategies, including system activity review;
- c. Information access procedures for approving individual's access rights to PHI (including the implementation of workforce security measures to ensure continued appropriate role-based access to PHI), and technical policies and procedures to ensure compliance with grants of access (including unique user identification and tracking of users) and;
- d. The imposition of sanctions for violations.

B. Limit physical access to its electronic information systems and the facility or facilities in which they are housed.

C. Implement policies, procedures and physical security measures that will limit access to PHI through workstations and other devices, including access through mobile devices.

D. Implement media controls covering the movement of devices containing PHI within or outside of the Business Associate's facility as well as the disposal and reuse of media containing PHI.

E. Implement appropriate administrative, physical and technical safeguards that reasonably and appropriately protect the confidentiality, integrity and availability (including the use of contingency plans) of any electronic protected health information ("EPHI") it creates, receives, maintains or transmits from, or on behalf of the Covered Entity to prevent impermissible use, disclosure, maintenance or transmission of such EPHI. In the

establishment of such safeguards, Business Associate shall consider its size, complexity and capabilities, as well as its technical infrastructure, and its hardware and software security capabilities.

iii. Assess, and implement, where appropriate, any addressable implementation specifications associated with applicable PHI security standards.

iv. Mitigate, to the extent practicable, any harmful effect that is known to Business Associate of a use or disclosure of PHI by Business Associate in violation of the requirements of this Contract.

v. Comply with the following Incident Reporting:

A. Report to Covered Entity any security incident/breach involving unsecured PHI, of which it becomes aware, including those of its agents and subcontractors. The Business Associate shall report any violation of the terms of this contract involving PHI and any security incidents/breaches involving unsecured PHI to CMS within one (1) hour of discovery in accordance with the CMS Risk Management Handbook (RMH), specifically "RMH Vol II Procedure 7-2 Incident Handling Procedure" and "RMH Vol III Standard 7-1 Incident Handling." These procedures can be found at <http://www.cms.gov/Research-Statistics-Data-and-Systems/CMS-Information-Technology/InformationSecurity/Information-Security-Library.html> In addition, the Business Associate will also notify the CMS Contracting Officer and the Contracting Officer's Representative (COR) by email within one (1) hour of identifying such violation or incident.

B. Upon Covered Entity's knowledge of any material security incident/breach by Business Associate, Covered Entity will provide an opportunity for Business Associate to cure the breach or end the violation consistent with the termination clause of this Contract. See also paragraph D. Term of Clause below.

vi. Ensure that any agent or subcontractor agrees through a written contract, or other legally enforceable arrangement, to the same restrictions and conditions that apply through this HIPAA Contract Clause, when creating, receiving, maintaining or transmitting PHI from, or on behalf of, Covered Entity.

vii. Upon Covered Entity's request:

A. Provide the Covered Entity or its designee with access to the PHI created, received, maintained or transmitted by Business Associate from or on behalf of the Covered Entity in the course of contract performance in order to ensure Covered Entity's ability to meet the requirements under 45 CFR 164.524.

B. Amend PHI as Covered Entity directs or agrees to pursuant to 45 CFR 164.526.

viii. Make its facilities and any books, records, accounts, and any sources of PHI, including any policies and procedures, that are pertinent to ascertaining its own compliance with this contract or the Covered Entity's compliance with the applicable HIPAA requirements, available to Covered Entity, or, in the context of an investigation or compliance review, to the Secretary for purposes of the Secretary determining Covered Entity's compliance with the various rules implementing the HIPAA.

ix. Document disclosures of PHI and information related to such disclosures as would be required for Covered Entity to respond to a request by an Individual for an accounting of disclosures of PHI in accordance with 45 CFR 164.528.

x. Provide to Covered Entity, or an individual identified by the Covered Entity, information collected under this Contract, to permit Covered Entity to respond to a request by an Individual for an accounting of disclosures of PHI in accordance with 45 CFR 164.528.

xi. Make reasonable efforts to limit the PHI it uses, discloses or requests to the minimum necessary to accomplish the intended purpose of the permitted use, disclosure or request.

c. Obligations of Covered Entity

Covered Entity shall notify Business Associate of any:

1. Limitation(s) in its Notice of Privacy Practices in accordance with 45 CFR 164.520, to the extent that such limitation may affect Business Associate's use or disclosure of PHI;
2. Changes in, or revocation of, permission by an Individual to use or disclose their PHI, to the extent that such changes may affect Business Associate's use or disclosure of PHI; and,
3. Restriction to the use or disclosure of PHI that Covered Entity has agreed to in accordance with 45 CFR 164.522, to the extent that such restriction may affect Business Associate's use or disclosure of PHI.

d. Term of Clause

1. The term of this Clause shall be effective as of date of Contract award, and shall terminate when all of the PHI provided to Business Associate by the Covered Entity or a Business Associate of the Covered Entity, or created or received by Business Associate on behalf of Covered Entity, is destroyed or returned to Covered Entity in accordance with "CMS Information Security" procedures. Business Associate shall not retain any PHI.

2. Security Incident/Breach:

Upon Covered Entity's knowledge of a material breach by Business Associate, Covered Entity shall take action consistent with the terms of this Contract, and, as appropriate, the following:

i. Federal Acquisition Regulation (FAR) Contracts - Covered Entity may:

- A. Terminate this Contract in accordance with FAR Part 49, Termination of Contracts, if the Business Associate does not cure the security incident/breach within the time specified by Covered Entity and/or cure is not possible; or,
- B. If neither termination nor cure is feasible, Covered Entity shall report the violation to the Secretary.

ii. Other Agreements - Covered Entity shall either:

- A. Provide an opportunity for Business Associate to cure the breach or end the violation consistent with the termination terms of this Contract. Covered Entity may terminate this Contract for default if the Business Associate does not cure the breach or end the violation within the time specified by Covered Entity; or,
- B. Consistent with the terms of this Contract, terminate this Contract for default if Business Associate has breached a material term of this Contract and cure is not possible; or,
- C. If neither termination nor cure is feasible, Covered Entity shall report the violation to the Secretary.

3. Returning or Destroying PHI:

Business Associate, as defined above, which includes subcontractors or agents of the Contractor, shall:

- i. Upon expiration or termination of this Contract, for any reason, return or destroy all PHI received from Covered Entity or another Business Associate of the Covered Entity, as well as any PHI created, received, maintained or transmitted from or on behalf of Covered Entity, or another Business Associate of the Covered Entity, in accordance with this contract, including the "CMS Information Security" clause.
- ii. In the event that Business Associate determines that returning or destroying the PHI is infeasible, provide to Covered Entity notification of the conditions that make return or destruction infeasible. Upon such notice that return or destruction of PHI is infeasible, Business Associate shall extend the

protections of this Contract to such PHI and limit further uses and disclosures of such PHI to those purposes that make the return or destruction infeasible, for so long as Business Associate maintains such PHI.

e. Miscellaneous

1. A reference in this Contract to a section in the Rules issued under HIPAA means the section as in effect or as amended.
2. The respective rights and obligations of Business Associate under paragraph D.3.b of the section entitled "Term of Clause" shall survive the termination of this Contract.

Any ambiguity in this Contract clause shall be resolved to permit Covered Entity to comply with the Rules implemented under HIPAA.

H.2 CMS INFORMATION SECURITY (OCT 2020)

All CMS information shall be protected from unauthorized access, use, disclosure, duplication, modification, diversion, or destruction, whether accidental or intentional, in order to maintain the security, confidentiality, integrity, and availability of such information. Therefore, if this contract requires the contractor to provide services (both commercial and non-commercial) for Federal Information/Data, to include any of the following requirements:

- Process any Information/Data; or
- Store any Information/Data (includes "Cloud" computing services); or
- Facilitate the transport of Information/Data; or
- Host/maintain Information/Data (including software and/or infrastructure developer/maintainers); or
- Have access to, or use of, Personally Identifiable Information (PII), including instances of remote access to, or physical removal of, such information beyond agency premises or control,

The contractor shall become familiar and remain compliant with all aspects of the Statement of Work (SOW), Statement of Objectives (SOO), Performance Work Statement (PWS), which includes CMS Information Security requirements.

The contractor shall ensure that the following Federal information security standards are met for all of its CMS contracts:

Federal Information Security Management Act (FISMA) - FISMA information can be found at <https://csrc.nist.gov/projects/risk-management>. FISMA requires each Federal agency to develop, document, and implement an agency-wide program to provide information security for the information and information systems that support the operations and assets of the agency, including those provided or managed by another agency, contractor, or other source; and,

Federal Risk and Authorization Management Program (FedRAMP) - FedRAMP information can be found at <https://www.gsa.gov/technology/government-it-initiatives/fedramp>. The FedRAMP is a government-wide program that provides a standardized approach to security assessment, authorization, and continuous monitoring for cloud products and services.

The Contractor shall include in all awarded subcontracts the FISMA/FedRAMP compliance requirements set forth at the CMS Information Security website at <https://www.cms.gov/Research-Statistics-Data-and-Systems/CMS-Information-Technology/InformationSecurity/Info-Security-Library-Items/CMS-Security-and-Privacy-Language-for-Procurements>.

H.3 Mandatory Contractor Training (SEP 2024)

All contractor employees who have access to (1) HHS Federal Information or a Federal information system or (2) personally identifiable information shall complete the CMS provided Records management training required by the Department of Health and Human Services (HHS) before performing any work under their contract. Thereafter, the employees must complete annual Records Management training throughout the life of the contract. The Contractor shall also ensure subcontractor compliance with this training requirement.

Link to the training can be found here: <https://www.cms.gov/about-cms/work-us/business-resources/contractor-information/training>

Contractor employees are expected to complete any new training requirements enacted by HHS, whereby access to the course material has been provided. These courses are at no additional cost to the contract and the contractor is not required to provide

documentation on such training unless specifically requested. The Government does not anticipate a contractor will develop a system specifically designed to track and monitor such trainings, but will address the requirements under overall contract management and adherence to regulations as noted in the Contractor Performance Assessment Reporting System (CPARS).

H.4 CMS SECURITY CLAUSE (MAY 2018)

a. Applicability

In accordance with OMB Memorandum M-05-24, Implementation of Homeland Security Presidential Directive 12 (HSPD-12): Policy for a Common Identification Standard for Federal Employees and Contractors, dated August 27, 2004, and Federal Information Processing Standard (FIPS) PUB Number 201-2, Personal Identity Verification (PIV) of Federal Employees and Contractors, CMS must achieve appropriate security assurance for multiple applications by efficiently verifying the claimed identity of individuals seeking physical access to Federally controlled government facilities and/or logical access to federally controlled information systems. Contractors that require routine physical access to a CMS facility and/or routine access to a CMS federally controlled information system will be required to obtain a CMS issued PIV, PIV-I or Locally Based Physical Access card. FIPS PUB 201-2 specifies the architecture and technical requirements for a common identification standard for Federal employees and Contractors.

When a PIV or PIV-I card is provided, it shall be used in conjunction with a compliant card reader and middleware for logical system access. The Contractor shall (1) Include FIPS 201-2 compliant, HSPD-12 card readers with the purchase of servers, desktops, and laptops; and (2) comply with FAR 52.204-9, Personal Identity Verification of Contractor Personnel.

b. Definitions

"Agency Access" means access to CMS facilities, sensitive information, information systems or other CMS resources.

"Applicant" is a Contractor employee for whom the Contractor submits an application for a CMS identification card.

"Contractor Employee" means prime Contractor and subcontractor employees who require agency access to perform work under a CMS contract.

"Official station"- As defined by Federal Travel Regulations, An area defined by the agency that includes the location where the employee regularly performs his or her duties or an invitational traveler's home or regular place of business. The area may be a mileage radius around a particular point, a geographic boundary, or any other definite domain, provided no part of the area is more than 50 miles from where the employee regularly performs his or her duties or from an invitational traveler's home or regular place of business. If the employee's work involves recurring travel or varies on a recurring basis, the location where the work activities of the employee's position of record are based is considered the regular place of work.

"Federal Identification Card" (or "ID card") means a federal government issued or accepted identification card such as a Personal Identity Verification(PIV) card, Personal Identity Verification-Interoperable (PIV-I) card, or a Local-Based Physical Access Card issued by CMS, or a Local-Based Physical Access Card issued by another Federal agency and approved by CMS. "Issuing Office" means the CMS entity that issues identification cards to Contractor employees.

"Locally Based Physical Access Card" means an access Card that is graphically personalized for visual identification, that does not contain an embedded computer chip, and is only used for physical access.

"Local Security Servicing Organization" means the CMS entity that provides security services to the CMS organization sponsoring the contract, Division of Physical Security and Strategic Information (DPSSI).

"Logical Access" means the ability for the Contractor to interact with CMS information systems, databases, digital infrastructure, or data via access control procedures such as identification, authentication, and authorization.

"Personal Identity Verification (PIV) card," as defined in FIPS PUB 201-2, is a physical artifact (e.g., identity card, "smart" card) issued to an individual that contains a PIV Card Application which stores identity credentials (e.g., photograph, cryptographic keys, digitized fingerprint representation) so that the claimed identity of the cardholder

can be verified against the stored credentials by another person (human readable and verifiable) or an automated process (computer readable and verifiable).

"Personal Identity Verification-Interoperable (PIV-I) card" similar to a PIV card, is a physical artifact (e.g., identity card, "smart" card) issued to an individual that contains a PIV Card Application which stores identity credentials (e.g., photograph, cryptographic keys, digitized fingerprint representation) so that the claimed identity of the cardholder can be verified against the stored credentials by another person (human readable and verifiable) or an automated process (computer readable and verifiable). PIV-I cards are issued by a non-federal government entity to non-federal government staff. PIV-I cards are issued in a manner that allows federal relying parties to trust the cards. The PIV-I cards use the same standards of vetting and issuance developed by the U.S. government for its employees

c. Screening of Contractor Employees

i. Contractor Screening of Applicants

1. Contractor Responsibility: The Contractor shall pre-screen individuals designated for employment under any CMS contract by verifying minimum suitability requirements to ensure that only qualified candidates are considered for contract employment. At the discretion of the government, the government reserves the right to request and/or review Contractor employee vetting processes. The federal minimum suitability requirements can be found below in section (c)(2)-Suitability Requirements, and are also contained in 5 CFR 731.202. The Contractor shall exercise due diligence in pre-screening all employees prior to submission to CMS for agency access.

2. Alien Status: The Contractor shall monitor an alien's (foreign nationals) continued authorization for employment in the United States. If requested by the Agency, the Contractor shall provide documentation to the Contracting Officer (CO) or the Contracting Officer's Representative (COR) that validates that the Employment Eligibility Verification (e-Verify) requirement has been met for each Contractor or sub-Contractor employee working on the contract in accordance with Federal Acquisition Regulation (FAR) 52.222-54 - Employment Eligibility Verification.

3. Residency Requirement: All CMS Contractor applicants shall have lived in the United States at least three (3) out of the last five (5) years prior to submitting an application for a Federal ID Card. CMS will process background investigations for foreign nationals in accordance with Office of Personnel Management (OPM) guidance. Contractor employees who worked for the U. S. Government as an employee overseas in a Federal or military capacity; and/or been a dependent of a U.S. Federal or military employee serving overseas, must be able to provide state-side reference coverage. State-side coverage information is required to make a suitability or security determination. Examples of state-side coverage information include: the state-side address of the company headquarters where the applicant's personnel file is located, the state-side address of the Professor in charge of the applicant's "Study Abroad" program, the religious organization, charity, educational, or other non-profit organization records for the applicant's overseas missions, and/or the state-side addresses of anyone who worked or studied with the applicant while overseas.

4. Selective Service Registration: All males born after December 31, 1959, must meet the Federal Selective Service System requirements as established on www.sss.gov.

ii. Identification Card Application Process

ID Card Sponsor: The CMS Contracting Officer's Representative (COR) will be the CMS ID card Sponsor and point of contact for the Contractor's application for a CMS ID card. The COR will review and approve/deny the HHS ID Badge Request before the form is submitted to the CMS, Office of Support Services and Operations, (OSSO), Division of Personnel Security Services (DPS), for processing. If approved, an applicant may be issued either a Personal Identity Verification (PIV) or PIV- I card that meets the standards of HSPD-12 or a Local-Based Physical Access Card.

Contractor Application Required Submissions: All applicants shall submit an HHS ID Badge Request form for issuance of a Federal ID Card. Unless otherwise directed by the ID Card Sponsor or DPS, applicants are required to electronically submit the request form via CMS' Enterprise User

Administration(EUA) Electronic Front-end Interface (EFI) system, which is located at <https://eua.cms.gov/efi>. To assist users with the application process, a user's guide is located at: <https://www.cms.gov/about-cms/contracting/contracting-policy-resources>

The EUA users guide link should be used to obtain the most current instructional guidance.

PIV Training: Contractors who need PIV or PIV-I card shall complete HHS PIV Applicant Training, which is found at <https://www.cms.gov/About-CMS/Contracting-With-CMS/ContractingGeneralInformation/Contracting-Policy-and-Resources.html>. A copy of the completion certificate shall be included with the EFI application.

CMS Applicant Evaluations: CMS will evaluate an applicant's required access level. Once the review is complete and accepted for further processing, the applicant will be contacted by DPS to submit the below information, as applicable.

1. e-QIP: Contractor employees will be required to submit information into e-QIP, a web-based automated system that is designed to facilitate the processing of standard investigative forms used when conducting background investigations for Federal security, suitability, fitness and credentialing purposes.
2. Fingerprints: Instructions for obtaining fingerprints will be provided by CMS, OSSO, DPS.
3. OF 306: Contractor employees may be required to complete the Optional Form (OF) 306, Declaration for Federal Employment which can be found at https://www.opm.gov/forms/pdf_fill/of0306.PDF
4. Access to Restricted Area(s): The CMS COR will initiate all Federal ID card holders' physical access requests via Physical Access Control System (PACS) Central at <https://pam.cms.gov/identify.php>.

Suitability Requirements: CMS may decline to grant agency access to a Contractor employee including, but not limited to, any of the criteria cited below:

1. Misconduct or negligence in employment;
2. Criminal or dishonest conduct;
3. Material, intentional false statement, or deception or fraud in examination or appointment;
4. Refusal to furnish testimony as required by 5.4 of 5 CFR 731.202;
5. Alcohol abuse, without evidence of substantial rehabilitation, of a nature and duration that suggests that the applicant or appointee would be prevented from performing the duties of the position in question, or would constitute a direct threat to the property or safety of the applicant or appointee or others;
6. Illegal use of narcotics, drugs, or other controlled substances without evidence of substantial rehabilitation;
7. Knowing and willful engagement in acts or activities designed to overthrow the U.S. Government by force; and
8. Any statutory or regulatory bar which prevents the lawful employment of the person involved in the position in question.

Badge Issuance: Upon approval of the badging application process and prior to starting work on the contract, applicants whose official station is located within 50 miles from CMS' central office or one of its regional offices will be contacted to appear in person, at least two times (estimated at one hour for each visit), and shall provide two (2) original forms of identity source documents in order to generate

the badge/ID. The identity source documents shall come from the list of acceptable documents included in FIPS 201-2, located at <http://nvlpubs.nist.gov/nistpubs/FIPS/NIST.FIPS.201-2.pdf>. At least one (1) document shall be a valid State or Federal government-issued picture ID. PIV-I mobile enrollment stations will be made available for applicants that have an official station more than 50 miles from CMS or any of its regional offices, and the employee will not need to travel to a CMS Office. The Contractor will be contacted by CMS for further instructions on the badging process in this scenario.

d. CMS Position Designation Assessment

CMS will assign a risk and sensitivity level designation analysis to the overall contract and/or to Contractor employee positions by category, group or individual. The risk and sensitivity level designations will be the basis for determining the level and type of personnel security investigations required for Contractor employees. At a minimum, the FBI National Criminal History Check(fingerprint check) must be favorably adjudicated. Additionally, the OPM e-QIP and other required forms must be accepted by DPS before a CMS identification card will be issued.

e. Post Badging Training Requirements:

Contractor employees that receive an HHS ID Badge are expected to complete the following online trainings each year, according to the timeframes indicated below, and annually thereafter. The below list is not all inclusive and the COR may indicate training that must be taken in addition to the below:

- i. Security and Insider Threat Awareness and Training (30 days after receiving badge): This course outlines the role of Contractors with regard to protecting information and ensuring the secure operation of CMS federally controlled information systems. Estimated time to complete is one hour.
- ii. Computer Based Training (CBT) (within 3 days of approved EUA account): This training offers several modules to familiarize contractor employees with features of CMS' webinar service. Estimated time to complete is one hour.

f. Background Investigation and Adjudication

Upon contract award and receipt of an HHS ID Badge Request, CMS will initiate the Agency Access procedures, to include a background investigation.

CMS may accept favorable background investigation adjudications from other Federal agencies when there has been no break in service. A favorable adjudication does not preclude CMS from initiating a new investigation when deemed necessary. Each CMS sponsored Contractor shall use the OPM e-QIP system to complete any required investigative forms.

The Contractor remains fully responsible for ensuring contract performance pending completion of background investigations of Contractor personnel. Employees that do not require access to CMS federally controlled information systems, facilities, or sensitive information in order to perform their duties may begin work on a contract immediately and need not submit an HHS ID Badge Request.

- i. Failure to cooperate with OPM or Agency representatives during the background investigation process is considered grounds for removal from the contract.
- ii. DPS may provide written notification to the Contractor employee, with a copy to the COR, of all suitability/non-suitability decisions. A CMS adjudicative decision(based on criminal history results or completed investigation results) is final, and is not subject to appeal.
- iii. Contractor personnel for whom DPS determines to be ineligible for ID issuance will be required to cease working on the contract immediately.
- iv. The Contractor shall immediately submit an adverse information report, in writing to the CO with a copy to the COR, of any adverse information regarding any of its employees that may impact their ability to perform under this contract. Reports should be based on reliable and substantiated information, not on rumor or innuendo. The report shall include, at a minimum, the Contractor employee's name and associated contract number along with the adverse information. The COR will forward the adverse information report to the DPS for review and/or action.

v. At the Agency's discretion, Contractor personnel may be provided an opportunity to explain or refute unfavorable information before an adjudicative decision is rendered on whether or not to withdraw the Federal ID from the individual in question. Under the provision of the Privacy Act of 1974, Contractor personnel may request a copy of their own investigation by submitting a written request to the OPM Federal Investigative Services (FIS) Freedom of Information (FOI) office. The following OPM-FOI link is being provided to afford one the instructions for obtaining a copy of one's file: <https://www.opm.gov/investigations/freedom-of-information-and-privacy-act-requests/>.

g. Background Investigation Cost

The government will bear the cost of background investigations that are performed at the direction of CMS' personnel security representatives by the Federal government's approved and designated background investigation service provider, the OPM.

At the Agency's discretion, if an investigated Contractor employee leaves the employment of the Contractor, or otherwise is no longer associated with the contract within one (1) year from the date the background investigation was completed, the Contractor may be required to reimburse CMS for the full cost of the investigation. Depending upon the type of background investigation conducted and the cost incurred by CMS, the Contractor cost will be determined based upon the current OPM fiscal year billing rates, which can be found at <https://nbib.opm.gov/hr-security-personnel/investigations-billing-rates-resources/>. The amount to be paid by the Contractor shall be due and payable when the CO submits a written letter notifying the Contractor as to the cost of the investigation. The Contractor shall pay the amount due within thirty (30) days of the date of the CO's letter by check, made payable to the "United States Treasury." The Contractor shall provide a copy of the CO's letter as an attachment to the check and submit both to the Office of Financial Management at the following address:

Centers for Medicare & Medicaid Services

PO Box 7520

Baltimore, Maryland 21207

h. Identification Card Custody and Control

The Contractor is responsible for the custody and control of all forms of Federal identification issued by CMS to Contractor employees. The Contractor shall immediately notify the COR when a Contractor employee no longer requires agency access due to transfer, completion of a project, retirement, removal from work on the contract, or termination of employment. Return all CMS Federal ID cards to:

The Centers for Medicare and Medicaid Services

Attn: DPS, Mailstop: SL-17-06

7500 Security Boulevard

Baltimore, Maryland 21244

The Contractor shall also ensure that Contractor employees comply with CMS requirements concerning the renewal, loss, theft, or damage of an ID card.

Failure to comply with the requirements for custody and control of CMS issued ID cards may result in a delay in withholding final payment or contract termination, based on the potential for serious harm caused by inappropriate access to CMS facilities, sensitive information, information systems or other CMS resources.

i. Renewal: A Contractor employee's CMS issued ID card is valid for a maximum of five (5) years and 9 months or until the contract expiration date (including option periods), whichever occurs first. The renewal process should begin six weeks before the ID card expiration date by contacting the COR. If an ID card is not renewed before it expires, the Contractor employee will be required to sign-in daily for facility access and may have limited access to information systems and other resources. Contractor ID card certificate(s) require yearly updates from the issuance date. The yearly updates should be coordinated between the contractor and the COR.

ii. Lost/Stolen: Immediately upon detection that an ID card is lost or stolen, the Contractor or Contractor employee shall report a lost or stolen ID card to the COR and the local security servicing organization at SECURITY@cms.hhs.gov. The Contractor shall also submit an Incident Report within 48 hours, to the COR, DPS at Badging@cms.hhs.gov, and the local security servicing organization. The Incident Report shall describe the circumstances of the loss or theft. If the loss or theft is reported by the Contractor to the local police, a copy of the police report shall be provided to the COR. The Contractor employee shall sign in daily for facility access and may have limited access to information systems and other resources until the replacement card is issued.

iii. Replacement: An ID card will be replaced if it is damaged, contains incorrect data, or is lost or stolen for more than three (3) days, provided there is a continuing need for agency access to perform work under the contract.

In the event that the PIV card or certificate(s) are not renewed in a timely fashion, or the ID card requires replacement due to being lost, stolen, or damaged, the contractor employee will go through the "Badge Issuance" process again as described in above in section (c)(2). In any of these events, contact your COR to coordinate the appropriate next steps.

i. Surrender ID Cards/Access Cards, Government Equipment

CMS reserves the right to suspend or withdraw ID card access at any time for any reason. Access will be restored upon the resolution of the issue(s).

Upon notification that routine access to CMS facilities, sensitive information, federally controlled information systems or other CMS resources is no longer required, the Contractor shall surrender the CMS issued ID card, access card, keys, computer equipment, and other government property to the CMS COR or directly to CMS at the address referenced above in section (f). DPS Contractor personnel who do not return their government issued property within 48 hours of the last day of authorized access to CMS, may be permanently barred from CMS systems and facilities and may be subject to fines and penalties, as authorized by applicable Federal or State laws.

(End of Section)

Contract Clauses

FAR Clauses Incorporated by Reference

Number	Title	Effective Date
52.202-1	Definitions.	Jun 2020
52.227-14	Rights in Data-General.	May 2014
52.227-19	Commercial Computer Software License.	Dec 2007
52.232-39	Unenforceability of Unauthorized Obligations.	Jun 2013
52.232-40	Providing Accelerated Payments to Small Business Subcontractors.	Mar 2023
52.233-4	Applicable Law for Breach of Contract Claim.	Oct 2004

52.243-1	Changes-Fixed-Price.-Alternate V	Apr 1984
52.244-6 Dev	Subcontracts for Commercial Products and Commercial Services	(Jan 2025)(Deviation Feb 2025)

Department of Health and Human Services Acquisition Regulations (HHSAR) Clauses Incorporated by Reference

Number	Title	Effective Date
352.203-70	Anti-Lobbying	Dec 2015
352.211-1	Public Accommodations and Commercial Facilities	NOV 2025 RFO DEVIATION
352.222-70	Contractor Cooperation in Equal Employment Opportunity Investigations	Dec 2015

FAR Clauses Incorporated by Full Text

52.212-5 Dev Contract Terms and Conditions Required to Implement Statutes or Executive Orders - Commercial Products and Commercial Services Feb 2025 DEVIATION

(a) The Contractor shall comply with the following Federal Acquisition Regulation (FAR) clauses, which are incorporated in this contract by reference, to implement provisions of law or Executive orders applicable to acquisitions of commercial products and commercial services:

- (1) [52.203-19](#), Prohibition on Requiring Certain Internal Confidentiality Agreements or Statements (Jan 2017) (section 743 of Division E, Title VII, of the Consolidated and Further Continuing Appropriations Act, 2015 (Pub. L. 113-235) and its successor provisions in subsequent appropriations acts (and as extended in continuing resolutions)).
- (2) [52.204-23](#), Prohibition on Contracting for Hardware, Software, and Services Developed or Provided by Kaspersky Lab Covered Entities (Dec 2023) (Section 1634 of Pub. L. 115-91).
- (3) [52.204-25](#), Prohibition on Contracting for Certain Telecommunications and Video Surveillance Services or Equipment. (Nov 2021) (Section 889(a)(1)(A) of Pub. L. 115-232).
- (4) [52.209-10](#), Prohibition on Contracting with Inverted Domestic Corporations (Nov 2015).
- (5) [52.232-40](#), Providing Accelerated Payments to Small Business Subcontractors (Mar 2023) ([31U.S.C. 3903](#) and [10U.S.C. 3801](#)).
- (6) [52.233-3](#), Protest After Award (Aug 1996) (31 U.S.C. 3553).
- (7) [52.233-4](#), Applicable Law for Breach of Contract Claim (Oct 2004) (Public Laws 108-77 and 108-78 (19 U.S.C. 3805 note)).

(b) The Contractor shall comply with the FAR clauses in this paragraph (b) that the Contracting Officer has indicated as being incorporated in this contract by reference to implement provisions of law or Executive orders applicable to acquisitions of commercial products and commercial services:

[Contracting Officer check as appropriate.]

- _ (1) [52.203-6](#), Restrictions on Subcontractor Sales to the Government (Jun 2020), with Alternate I (Nov 2021) (41 U.S.C. 4704 and [10U.S.C. 4655](#)).
- _ (2) [52.203-13](#), Contractor Code of Business Ethics and Conduct (Nov 2021) (41 U.S.C. 3509)).
- _ (3) [52.203-15](#), Whistleblower Protections under the American Recovery and Reinvestment Act of 2009 (Jun 2010) (Section 1553 of Pub. L. 111-5). (Applies to contracts funded by the American Recovery and Reinvestment Act of 2009.)
- _ (4) [52.203-17](#), Contractor Employee Whistleblower Rights (Nov 2023) ([41U.S.C. 4712](#)); this clause does not apply to contracts of DoD, NASA, the Coast Guard, or applicable elements of the intelligence community-see FAR [3.900\(a\)](#).
- _ (5) [52.204-10](#), Reporting Executive Compensation and First-Tier Subcontract Awards (Jun 2020) (Pub. L. 109-282) ([31 U.S.C. 6101 note](#)).
- _ (6) [Reserved].
- _ (7) [52.204-14](#), Service Contract Reporting Requirements (Oct 2016) (Pub. L. 111-117, section 743 of Div. C).
- _ (8) [52.204-15](#), Service Contract Reporting Requirements for Indefinite-Delivery Contracts (Oct 2016) (Pub. L. 111-117, section 743 of Div. C).
- _ (9) [52.204-27](#), Prohibition on a ByteDance Covered Application (Jun 2023) (Section 102 of Division R of Pub. L. 117-328).
- _ (10) [52.204-28](#), Federal Acquisition Supply Chain Security Act Orders-Federal Supply Schedules, Governmentwide Acquisition Contracts, and Multi-Agency Contracts. (Dec 2023) ([Pub. L. 115-390](#), title II).
- _ (11)(i) [52.204-30](#), Federal Acquisition Supply Chain Security Act Orders-Prohibition. (Dec 2023) [Pub. L. 115-390](#), title II).
- _ (ii) Alternate I (Dec 2023) of [52.204-30](#).
- _ (12) [52.209-6](#), Protecting the Government's Interest When Subcontracting With Contractors Debarred, Suspended, Proposed for Debarment, or Voluntarily Excluded.(Jan 2025) ([31 U.S.C. 6101 note](#)).
- _ (13) [52.209-9](#), Updates of Publicly Available Information Regarding Responsibility Matters (Oct 2018) ([41 U.S.C. 2313](#)).
- _ (14) [Reserved].
- _ (15) [52.219-3](#), Notice of HUBZone Set-Aside or Sole-Source Award (Oct 2022) ([15 U.S.C. 657a](#)).
- _ (16) [52.219-4](#), Notice of Price Evaluation Preference for HUBZone Small Business Concerns (Oct 2022) (if the offeror elects to waive the preference, it shall so indicate in its offer) (15 U.S.C. 657a).
- _ (17) [Reserved]
- _ (18) (i) [52.219-6](#), Notice of Total Small Business Set-Aside (Nov 2020) (15 U.S.C. 644).
- _ (ii) Alternate I (Mar 2020) of [52.219-6](#).
- _ (19) (i) [52.219-7](#), Notice of Partial Small Business Set-Aside (Nov 2020) (15 U.S.C. 644).
- _ (ii) Alternate I (Mar 2020) of [52.219-7](#).
- _ (20) [52.219-8](#), Utilization of Small Business Concerns (Jan 2025)([15 U.S.C. 637\(d\)\(2\)](#) and (3)).

- _ (21) (i) [52.219-9](#), Small Business Subcontracting Plan (Jan 2025) ([15 U.S.C. 637](#)(d)(4)).
 - _ (ii) Alternate I (Nov 2016) of [52.219-9](#).
 - _ (iii) Alternate II (Nov 2016) of [52.219-9](#).
 - _ (iv) Alternate III (Jun 2020) of [52.219-9](#).
 - _ (v) Alternate IV (Jan 2025) of [52.219-9](#).
- _ (22) (i) [52.219-13](#), Notice of Set-Aside of Orders (Mar 2020) (15 U.S.C. 644(r)).
 - _ (ii) Alternate I (Mar 2020) of [52.219-13](#).
- _ (23) [52.219-14](#), Limitations on Subcontracting (Oct 2022) (15 U.S.C. 657s).
- _ (24) [52.219-16](#), Liquidated Damages-Subcontracting Plan (Sep 2021) (15 U.S.C. 637(d)(4)(F)(i)).
- _ (25) [52.219-27](#), Notice of Set-Aside for, or Sole-Source Award to, Service-Disabled Veteran-Owned Small Business (SDVOSB) Concerns Eligible Under the SDVOSB Program (Feb 2024) (15 U.S.C. 657f).
- _ (26) (i) [52.219-28](#), Postaward Small Business Program Rerepresentation (Jan 2025) (15 U.S.C. 632(a)(2)).
 - _ (ii) Alternate I (Mar 2020) of [52.219-28](#).
- _ (27) [52.219-29](#), Notice of Set-Aside for, or Sole-Source Award to, Economically Disadvantaged Women-Owned Small Business Concerns (Oct 2022) (15 U.S.C. 637(m)).
- _ (28) [52.219-30](#), Notice of Set-Aside for, or Sole-Source Award to, Women-Owned Small Business Concerns Eligible Under the Women-Owned Small Business Program (Oct 2022)(15 U.S.C. 637(m)).
- _ (29) [52.219-32](#), Orders Issued Directly Under Small Business Reserves (Mar 2020) ([15 U.S.C. 644](#)(r)).
- _ (30) [52.219-33](#), Nonmanufacturer Rule (Sep 2021) ([15U.S.C. 637](#)(a)(17)).
- _ (31) [52.222-3](#), Convict Labor (Jun 2003) (E.O.11755).
- _ (32) [52.222-19](#), Child Labor-Cooperation with Authorities and Remedies (Jan 2025)([E.O. 13126](#)).
- _ (33) [Reserved]
- _ (34) [Reserved]
- _ (35) (i) [52.222-35](#), Equal Opportunity for Veterans (Jun 2020) ([38 U.S.C. 4212](#)).
 - _ (ii) Alternate I (Jul 2014) of [52.222-35](#).
- _ (36) (i) [52.222-36](#), Equal Opportunity for Workers with Disabilities (Jun 2020) ([29 U.S.C. 793](#)).
 - _ (ii) Alternate I (Jul 2014) of [52.222-36](#).
- _ (37) [52.222-37](#), Employment Reports on Veterans (Jun 2020) ([38 U.S.C. 4212](#)).
- _ (38) [52.222-40](#), Notification of Employee Rights Under the National Labor Relations Act (Dec 2010) (E.O. 13496).
- _ (39) (i) [52.222-50](#), Combating Trafficking in Persons (Nov 2021) (22 U.S.C. chapter 78 and E.O. 13627).
 - _ (ii) Alternate I (Mar 2015) of [52.222-50](#) (22 U.S.C. chapter 78 and E.O. 13627).

- _ (40) [52.222-54](#), Employment Eligibility Verification (Jan 2025) ([Executive Order 12989](#)). (Not applicable to the acquisition of commercially available off-the-shelf items or certain other types of commercial products or commercial services as prescribed in FAR [22.1803](#).)
- _ (41) (i) [52.223-9](#), Estimate of Percentage of Recovered Material Content for EPA-Designated Items (May 2008) (42 U.S.C. 6962(c)(3)(A)(ii)). (Not applicable to the acquisition of commercially available off-the-shelf items.)
 - _ (ii) Alternate I (May 2008) of [52.223-9](#) (42 U.S.C. 6962(i)(2)(C)). (Not applicable to the acquisition of commercially available off-the-shelf items.)
- _ (42) [52.223-11](#), Ozone-Depleting Substances and High Global Warming Potential Hydrofluorocarbons (May 2024) ([42U.S.C. 7671](#), et seq.).
- _ (43) [52.223-12](#), Maintenance, Service, Repair, or Disposal of Refrigeration Equipment and Air Conditioners (May 2024) ([42U.S.C. 7671](#), et seq.).
- _ (44) [52.223-20](#), Aerosols (May 2024) ([42U.S.C. 7671](#), et seq.).
- _ (45) [52.223-21](#), Foams (May 2024) ([42U.S.C. 7671](#), et seq.).
- _ (46) [52.223-23](#), Sustainable Products and Services (May 2024) (DEVIATION FEB 2025) ([7U.S.C. 8102](#), [42U.S.C. 6962](#), [42U.S.C. 8259b](#), and [42U.S.C. 7671l](#)).
- _ (47) (i) [52.224-3](#) Privacy Training (Jan 2017) ([5U.S.C. 552 a](#)).
 - _ (ii) Alternate I (Jan 2017) of [52.224-3](#).
- _ (48) (i) [52.225-1](#), Buy American-Supplies (Oct 2022) (41 U.S.C. chapter 83).
 - _ (ii) Alternate I (Oct 2022) of [52.225-1](#).
- _ (49) (i) [52.225-3](#), Buy American-Free Trade Agreements-Israeli Trade Act (NOV 2023) ([19U.S.C. 3301 note](#), [19U.S.C. 2112 note](#), [19U.S.C. 3805 note](#), [19U.S.C. 4001 note](#), [19U.S.C. chapter 29](#) (sections 4501-4732), Public Law 103-182, 108-77, 108-78, 108-286, 108-302, 109-53, 109-169, 109-283, 110-138, 112-41, 112-42, and 112-43).
 - _ (ii) Alternate I [Reserved].
 - _ (iii) Alternate II (Jan 2025) of [52.225-3](#).
 - _ (iv) Alternate III (Feb 2024) of [52.225-3](#).
 - _ (v) Alternate IV (Oct 2022) of [52.225-3](#).
- _ (50) [52.225-5](#), Trade Agreements (NOV 2023) ([19 U.S.C. 2501](#), et seq., [19 U.S.C. 3301 note](#)).
- _ (51) [52.225-13](#), Restrictions on Certain Foreign Purchases (Feb 2021) (E.O.'s, proclamations, and statutes administered by the Office of Foreign Assets Control of the Department of the Treasury).
- _ (52) [52.225-26](#), Contractors Performing Private Security Functions Outside the United States (Oct 2016) (Section 862, as amended, of the National Defense Authorization Act for Fiscal Year 2008; 10 U.S.C. Subtitle A, Part V, Subpart G Note).
- _ (53) [52.226-4](#), Notice of Disaster or Emergency Area Set-Aside (Nov 2007)(42 U.S.C. 5150).
- _ (54) [52.226-5](#), Restrictions on Subcontracting Outside Disaster or Emergency Area (Nov 2007) (42 U.S.C. 5150).
- _ (55) [52.226-8](#), Encouraging Contractor Policies to Ban Text Messaging While Driving (May2024) ([E.O. 13513](#)).
- _ (56) [52.229-12](#), Tax on Certain Foreign Procurements (Feb 2021).

- _ (57) [52.232-29](#), Terms for Financing of Purchases of Commercial Products and Commercial Services (Nov 2021) (41 U.S.C. 4505, [10U.S.C. 3805](#)).
- _ (58) [52.232-30](#), Installment Payments for Commercial Products and Commercial Services (Nov 2021) (41 U.S.C. 4505, [10U.S.C. 3805](#)).
- _ (59) [52.232-33](#), Payment by Electronic Funds Transfer-System for Award Management (Oct2018) ([31 U.S.C. 3332](#)).
- _ (60) [52.232-34](#), Payment by Electronic Funds Transfer-Other than System for Award Management (Jul 2013) (31 U.S.C. 3332).
- _ (61) [52.232-36](#), Payment by Third Party (May 2014) (31 U.S.C. 3332).
- _ (62) [52.239-1](#), Privacy or Security Safeguards (Aug 1996) ([5 U.S.C. 552a](#)).
- _ (63) [52.240-1](#), Prohibition on Unmanned Aircraft Systems Manufactured or Assembled by American Security Drone Act-Covered Foreign Entities (Nov 2024) (Sections1821-1826, Pub. L. 118-31, [41U.S.C. 3901](#) note prec.).
- _ (64) [52.242-5](#), Payments to Small Business Subcontractors (Jan 2017) (15 U.S.C. 637(d)(13)).
- _ (65) (i) [52.247-64](#), Preference for Privately Owned U.S.-Flag Commercial Vessels (Nov2021) ([46U.S.C. 55305](#) and 10 U.S.C. 2631).
- _ (ii) Alternate I (Apr 2003) of [52.247-64](#).
- _ (iii) Alternate II (Nov 2021) of [52.247-64](#).

(c) The Contractor shall comply with the FAR clauses in this paragraph (c), applicable to commercial services, that the Contracting Officer has indicated as being incorporated in this contract by reference to implement provisions of law or Executive orders applicable to acquisitions of commercial products and commercial services:

[Contracting Officer check as appropriate.]

- _ (1) [52.222-41](#), Service Contract Labor Standards (Aug 2018) (41 U.S.C. chapter67).
- _ (2) [52.222-42](#), Statement of Equivalent Rates for Federal Hires (May 2014) (29 U.S.C. 206 and 41 U.S.C. chapter 67).
- _ (3) [52.222-43](#), Fair Labor Standards Act and Service Contract Labor Standards-Price Adjustment (Multiple Year and Option Contracts) (Aug 2018) (29 U.S.C. 206 and 41 U.S.C. chapter 67).
- _ (4) [52.222-44](#), Fair Labor Standards Act and Service Contract Labor Standards-Price Adjustment (May 2014) ([29U.S.C.206](#) and41 U.S.C. chapter 67).
- _ (5) [52.222-51](#), Exemption from Application of the Service Contract Labor Standards to Contracts for Maintenance, Calibration, or Repair of Certain Equipment-Requirements (May 2014) (41 U.S.C. chapter 67).
- _ (6) [52.222-53](#), Exemption from Application of the Service Contract Labor Standards to Contracts for Certain Services-Requirements (May 2014) (41 U.S.C. chapter 67).
- _ (7) [52.222-55](#), Minimum Wages for Contractor Workers Under Executive Order 14026 (Jan 2022).
- _ (8) [52.222-62](#), Paid Sick Leave Under Executive Order 13706 (Jan 2022) (E.O. 13706).
- _ (9) [52.226-6](#), Promoting Excess Food Donation to Nonprofit Organizations (Jun 2020)(42 U.S.C. 1792).
- _ (10) [52.247-69](#), Reporting Requirement for U.S.-Flag Air Carriers Regarding Training to Prevent Human Trafficking (Jan 2025) ([49 U.S.C. 40118\(g\)](#)).

(d) Comptroller General Examination of Record. The Contractor shall comply with the provisions of this paragraph (d) if this contract was awarded using other than sealed bid, is in excess of the simplified acquisition threshold, as defined in FAR [2.101](#), on the date of award of this contract, and does not contain the clause at [52.215-2](#), Audit and Records-Negotiation.

(1) The Comptroller General of the United States, or an authorized representative of the Comptroller General, shall have access to and right to examine any of the Contractor's directly pertinent records involving transactions related to this contract.

(2) The Contractor shall make available at its offices at all reasonable times the records, materials, and other evidence for examination, audit, or reproduction, until 3 years after final payment under this contract or for any shorter period specified in FAR subpart 4.7, Contractor Records Retention, of the other clauses of this contract. If this contract is completely or partially terminated, the records relating to the work terminated shall be made available for 3 years after any resulting final termination settlement. Records relating to appeals under the disputes clause or to litigation or the settlement of claims arising under or relating to this contract shall be made available until such appeals, litigation, or claims are finally resolved.

(3) As used in this clause, records include books, documents, accounting procedures and practices, and other data, regardless of type and regardless of form. This does not require the Contractor to create or maintain any record that the Contractor does not maintain in the ordinary course of business or pursuant to a provision of law.

(e)

(1) Notwithstanding the requirements of the clauses in paragraphs (a), (b), (c), and (d) of this clause, the Contractor is not required to flow down any FAR clause, other than those in this paragraph (e)(1), in a subcontract for commercial products or commercial services. Unless otherwise indicated below, the extent of the flow down shall be as required by the clause-

(i) [52.203-13](#), Contractor Code of Business Ethics and Conduct (Nov 2021) (41 U.S.C. 3509).

(ii) [52.203-17](#), Contractor Employee Whistleblower Rights (Nov 2023) ([41U.S.C. 4712](#)).

(iii) [52.203-19](#), Prohibition on Requiring Certain Internal Confidentiality Agreements or Statements (Jan 2017) (section 743 of Division E, Title VII, of the Consolidated and Further Continuing Appropriations Act, 2015 (Pub. L. 113-235) and its successor provisions in subsequent appropriations acts (and as extended in continuing resolutions)).

(iv) [52.204-23](#), Prohibition on Contracting for Hardware, Software, and Services Developed or Provided by Kaspersky Lab Covered Entities (Dec 2023) (Section 1634 of Pub. L. 115-91).

(v) [52.204-25](#), Prohibition on Contracting for Certain Telecommunications and Video Surveillance Services or Equipment. (Nov 2021) (Section 889(a)(1)(A) of Pub. L. 115-232).

(vi) [52.204-27](#), Prohibition on a ByteDance Covered Application (Jun 2023) (Section 102 of Division R of Pub. L. 117-328).

(vii)

(A) 52.204-30, Federal Acquisition Supply Chain Security Act Orders-Prohibition. (Dec2023) ([Pub. L. 115-390](#), title II).

(B) Alternate I (Dec 2023) of 52.204-30.

(viii) [52.219-8](#), Utilization of Small Business Concerns (Jan 2025) ([15 U.S.C. 637\(d\)](#)(2) and (3)), in all subcontracts that offer further subcontracting opportunities. If the subcontract (except subcontracts to small business concerns) exceeds the applicable threshold specified in FAR [19.702\(a\)](#) on the date of subcontract award, the subcontractor must include [52.219-8](#) in lower tier subcontracts that offer subcontracting opportunities.

(ix) [Reserved]

(x) [Reserved]

(xi) [52.222-35](#), Equal Opportunity for Veterans (Jun 2020) (38 U.S.C. 4212).

(xii) [52.222-36](#), Equal Opportunity for Workers with Disabilities (Jun2020) (29 U.S.C. 793).

(xiii) [52.222-37](#), Employment Reports on Veterans (Jun 2020) (38 U.S.C. 4212).

(xiv) [52.222-40](#), Notification of Employee Rights Under the National Labor Relations Act (Dec 2010) (E.O. 13496). Flow down required in accordance with paragraph (f) of FAR clause [52.222-40](#).

(xv) [52.222-41](#), Service Contract Labor Standards (Aug 2018) ([41 U.S.C. chapter 67](#)).

(xvi)

(A) [52.222-50](#), Combating Trafficking in Persons (Nov 2021) (22 U.S.C. chapter 78 and E.O. 13627).

(B) Alternate I (Mar 2015) of [52.222-50](#) (22 U.S.C. chapter 78 and E.O. 13627).

(xvii) [52.222-51](#), Exemption from Application of the Service Contract Labor Standards to Contracts for Maintenance, Calibration, or Repair of Certain Equipment-Requirements (May2014) (41 U.S.C. chapter 67).

(xviii) [52.222-53](#), Exemption from Application of the Service Contract Labor Standards to Contracts for Certain Services-Requirements (May 2014) (41 U.S.C. chapter 67).

(xix) [52.222-54](#), Employment Eligibility Verification (Jan 2025) ([E.O. 12989](#)).

(xx) [52.222-55](#), Minimum Wages for Contractor Workers Under Executive Order 14026 (Jan 2022).

(xxi) [52.222-62](#), Paid Sick Leave Under Executive Order 13706 (Jan 2022) (E.O. 13706).

(xxii)

(A) [52.224-3](#), Privacy Training (Jan 2017) ([5 U.S.C. 552a](#)).

(B) Alternate I (Jan 2017) of [52.224-3](#).

(xxiii) [52.225-26](#), Contractors Performing Private Security Functions Outside the United States (Oct 2016) (Section 862, as amended, of the National Defense Authorization Act for Fiscal Year 2008; 10 U.S.C. Subtitle A, Part V, Subpart G Note).

(xxiv) [52.226-6](#), Promoting Excess Food Donation to Nonprofit Organizations (Jun 2020) (42 U.S.C. 1792). Flow down required in accordance with paragraph (e) of FAR clause [52.226-6](#).

(xxv) [52.232-40](#), Providing Accelerated Payments to Small Business Subcontractors (Mar 2023)([31U.S.C. 3903](#) and [10U.S.C. 3801](#)). Flow down required in accordance with paragraph (c) of [52.232-40](#).

(xxvi) [52.240-1](#), Prohibition on Unmanned Aircraft Systems Manufactured or Assembled by American Security Drone Act-Covered Foreign Entities (Nov 2024) (Sections 1821-1826, Pub. L. 118-31, [41U.S.C. 3901](#) note prec.).

(xxvii) [52.247-64](#), Preference for Privately Owned U.S.-Flag Commercial Vessels (Nov 2021) ([46U.S.C. 55305](#) and 10 U.S.C. 2631). Flow down required in accordance with paragraph (d) of FAR clause [52.247-64](#).

(2) While not required, the Contractor may include in its subcontracts for commercial products and commercial services a minimal number of additional clauses necessary to satisfy its contractual obligations.

(End of clause)

(End of Section)

List of Attachments

Number	Attachment Name	Attachment Description	Reference Number	Date
02	Attachment 3 Technical Evaluation Criteria	Other Description	Technical Evaluation Criteria	17 APR 2026
03	FACA Panel Pricing Table	Other Description	FACA Panel Pricing Table	17 APR 2026
04	Attchment 1 FACA Panel Support SOW 4-9-2026	Statement of Work		17 APR 2026

Additional Information/Notes

Attachment 1 "FACA Panel Support SOW"

Attachment 2 "FACA Panel Pricing Table"

Attachment 3 Technical Evaluation Criteria"

(End of Section)

Representations, Certification, and other Statements of Offerors

(End of Section)

Instrs., Conds., and Notices to Offerors

The Offeror's proposal submission shall consist of:

Volume I - Written Technical Quote

Volume II - Business Quote

Each of the proposal volumes shall be separate and complete in itself so the evaluation of one volume may be accomplished independently of another proposal volume. The technical proposal must not contain references to price/cost. The technical proposal may contain resource information such as data concerning labor categories and hours/level of effort, subcontracts, etc., in order to convey an understanding of the scope of the work may be evaluated.

Volume I - Written Technical Quote

1. Offerors are required to submit a written technical quote in accordance with the following instructions:

2. Offerors shall respond to all aspects of the Statement of Work (SOW) as presented in the Request for Quote (RFQ).
3. Offerors shall submit as part of the quote a Volume entitled Technical Quote that addresses the following information:

Technical Understanding, Approach, and Quality Assurance

Personnel

Prior Experience

4. The technical written quote shall not be more than 5 single-spaced (one-sided) 8 1/2 x 11-inch pages. All page margins must be at least 1 inch. All quote text shall be Times New Roman, twelve (12)-point font, with the exception of charts, tables, and graphs which may have a font size no less than ten (10)-point font;

5. Substantive technical content shall be included in the 5-page limit of the technical quote and not included as appendices /attachments unless specifically noted in the instructions. No other appendices, attachments, or references will be allowed, reviewed, or considered.

Volume II - Business Quote

The Offeror shall complete Attachment 2 FACA Panel Pricing Table as instructed and shall submit that as a PDF as part of their business proposal. The offeror shall submit any assumptions as part of Volume 2.

FAR Clauses Incorporated by Reference

Number	Title	Effective Date
52.212-4	Contract Terms and Conditions—Commercial Products and Commercial Services.	Nov 2023

(End of Section)

Evaluation Factors for Award

See Attachment 3 Technical Evaluation Criteria for all technical criteria.
This award will be issued as a Lowest Price Technically Acceptable (LPTA).

(End of Section)